

ASCII MASTER FLOW – PANEL 1/9: Constitutional map: two law officers, two legislatures and no voting power

ROOT QUESTION

How does government receive authoritative legal advice without creating another court?

UNION

Article 76 -> Attorney General for India.

Article 88 -> speak and participate in both Houses, joint sitting and named committees.

Article 105(4) -> relevant parliamentary privileges extend; no membership or vote follows.

STATE

Article 165 -> Advocate General for the State.

Article 177 -> speak and participate in the State legislature and named committees.

Article 194(4) -> relevant legislative privileges extend; no membership or vote follows.

CORE LIMIT

constitutional law officer != judge, minister, legislator, prosecutor or independent tribunal.

ASCII MASTER FLOW – PANEL 2/9: Appointment, qualification, pleasure tenure and remuneration architecture

ATTORNEY GENERAL

President appoints | qualification for Supreme Court Judge under Article 124(3).
No constitutional age ceiling for holding AGI office.
Office during President's pleasure | no constitutional fixed term or removal process.
Remuneration as President determines; current administrative terms may come from rules.

ADVOCATE GENERAL

Governor appoints | qualification for High Court Judge under Article 217(2).
Office during Governor's pleasure | no constitutional fixed term or removal process.
Remuneration as Governor determines.

TRAP

qualification rule != tenure rule; a rule-based Union term does not displace pleasure.

ASCII MASTER FLOW – PANEL 3/9: Advice, representation, Article 143 work and the audience-assignment distinction

ARTICLE 76 DUTY

advise Government of India on legal matters referred by President

-> perform assigned legal duties

-> discharge functions conferred by Constitution or law.

OPERATIONAL REPRESENTATION

Supreme Court Union cases | Article 143 references | High Court appearance when assigned.

RIGHT OF AUDIENCE

AGI has an express constitutional right of audience in all courts in India.

THREE DISTINCT QUESTIONS

may the advocate practise? | does the advocate have audience? | is this brief assigned?

LIMIT

legal opinion advises the executive; it is not a judgment, veto or binding court order.

ASCII MASTER FLOW – PANEL 4/9: Articles 88, 177, 105(4) and 194(4): participation and privilege boundaries

PARLIAMENT

AGI may speak and otherwise take part in both Houses, a joint sitting and a committee of which the AGI is named a member.

STATE LEGISLATURE

Advocate General may speak and otherwise take part in the House or Houses and a committee of which the Advocate General is named a member.

COMMON LIMIT

no vote by virtue of the office | no elected membership | no ministerial responsibility.

PRIVILEGE RULE

Articles 105(4) and 194(4) extend specified privileges for authorised participation. They do not create blanket immunity for private conduct outside legislative proceedings.

ASCII MASTER FLOW – PANEL 5/9: Professional practice, Rule 8 conflicts, permissions and confidentiality

UNION LAW OFFICER PERIMETER

private professional work is permitted only within applicable conduct restrictions.

PROHIBITED OR CONTROLLED

brief against Government of India or covered public entities

- | advice where the officer advised or is likely to advise government

- | criminal defence without permission

- | company or corporation office without permission.

ETHICAL DUTIES

conflict check -> disclosure -> screen or recusal -> authorised brief

-> candour to court -> protect lawful confidentiality.

CONTEMPT CONSENT

section 15 gate concerns specified private criminal-contempt motions;

Supreme Court may still act suo motu.

TRAP

permitted practice != unrestricted practice and professional privilege has legal exceptions.

ASCII MASTER FLOW – PANEL 6/9: AGI, Solicitor General, Additional Solicitors General and State law-officer ecology

CONSTITUTIONAL OFFICES

AGI -> Article 76 | Advocate General -> Article 165.

UNION EXECUTIVE LAW OFFICERS

Solicitor General and Additional Solicitors General assist under executive rules.

Prominence and ranking do not convert them into constitutional or statutory offices.

STATE ECOLOGY

Advocate General is constitutional.

Additional Advocate Generals, standing counsel and panel counsel depend on State law or rules.

OTHER BOUNDARIES

Law Minister -> political executive.

Public Prosecutor -> criminal-procedure office.

CAG -> independent constitutional auditor.

EXAM RULE

classify by creating source before comparing function or prestige.

ASCII MASTER FLOW – PANEL 7/9: Attorney General and Advocate General: complete federal comparison

DIMENSION	ATTORNEY GENERAL	ADVOCATE GENERAL
Source	Article 76	Article 165
Appointer	President	Governor
Qualification	Supreme Court Judge route	High Court Judge route
Advice	Government of India	State Government
Audience	all courts in India	State-law position must be checked
Legislature	Article 88	Article 177
Vote	none by office	none by office
Privilege extension	Article 105(4)	Article 194(4)
Pleasure	President	Governor

CAUTION

Article 76(3)'s express all-India audience text must not be silently imported into Article 165.

ASCII MASTER FLOW – PANEL 8/9: Independence, government confidence and fair State panel appointments

STRUCTURAL TENSION

government needs trusted counsel

-> pleasure tenure and assignment control

-> risk of politicisation, discontinuity and selective briefing.

PROFESSIONAL COUNTERWEIGHT

court duty + qualification + audience + conflict rules + reasoned legal advice.

State of Punjab v. Brijeshwar Singh Chahal (2016)

State panel-lawyer selection must follow fair, objective and suitability-based standards.

The judgment did not replace the Governor's Article 165 appointment of Advocate General.

ACCOUNTABILITY

executive responsibility for decisions | judicial review of legality

| professional discipline | legislative and public scrutiny.

REFORM

transparent criteria + conflict register + reasoned recusals + litigation-management audit.

ASCII MASTER FLOW – PANEL 9/9: Current controls, PYQ routes, traps and qualified answer synthesis

DATED CONTROL: 24 AUGUST 2026

Constitution and current Union Law Officers Rules control; officeholder names are omitted.

PYQ ROUTES

2019 GS-II -> AGI as chief legal adviser.

2025 GS-II -> responsibilities, rights and limitations.

2022 Prelims -> AGI versus Solicitor General constitutional position.

PRELIMS FIREWALL

no fixed constitutional term | pleasure != impeachment

| audience != assigned brief | speak != vote

| privilege != blanket immunity | SG/ASG != constitutional

| private practice != conflict-free practice.

MAINS SPINE

constitutional source -> qualification and tenure -> advice and representation

-> enabling rights -> professional limits -> independence tension

-> transparent, ethical and accountable law-officer verdict.